MEMORANDUM OF AGREEMENT
ON STUDENT INTERNSHIP

Know All Men By These Presents:

This MEMORANDUM OF AGREEMENT (hereinafter "Agreement") is made and entered into by and between:

> The **POLYTECHNIC UNIVERSITY OF THE PHILIPPINES**, a state university with principal address at Anonas St., Sta. Mesa, Manila, duly represented by its Vice President for Academic Affairs, **DR. EMANUEL C. DE GUZMAN**, herein referred as "**UNIVERSITY**";
>
> -and-
>
> **[NAME OF PARTNER INSTITUTION OR COMPANY]**, an establishment/organization duly organized and existing under and by virtue of the laws of [Country], with principal office at [Complete Address], duly represented by its [Designation], **[NAME OF REPRESENTATIVE]**, hereinafter referred to as the "**FOREIGN HOST ESTABLISHMENT**" **or** "**FHE**".

WITNESSETH:

WHEREAS, in accordance with the Commission on Higher Education (CHED) Memorandum Order No. 10 Series of 2023, or the Enhanced Policies, Standards, and Guidelines (PSGs) on Student Internship Abroad Program (SIAP), the following policies, standards, and guidelines for student internship abroad programs for all CHED-recognized programs with internship/OJT/practicum subjects are hereby adopted for the information, guidance, and compliance of all concerned.

WHEREAS, pursuant to the aforementioned issuances, the Office of the Vice President for Academic Affairs, through Memorandum Order No. 2, Series of 2021, allowed offering of On-the-Job Training (OJT) and Internship Programs by means of face-to-face, online, and/or correspondence.

WHEREAS, in the interest of educational program cooperation and in the spirit of making significant contributions to the international and intercultural education of people, the PUP and the FHE have agreed, as they hereby agree, to form and develop a cultural and educational collaborative understanding;

WHEREAS, the parties acknowledge that such understanding will bring not only the faculty members of their respective institutions, but also the students and the people they serve closer together in their pursuit of educational ideals;

WHEREAS, the **UNIVERSITY,** has established an Internship Program as part of its curriculum. The program is designed to supplement the learnings and to train students to become competitive and technologically innovative professionals through actual exposure to a professional workplace;

WHEREAS, the **FOREIGN HOST ESTABLISHMENT OR FHE** supports this program and is willing to give the students of the **UNIVERSITY** a course related work assignments and expose them to actual learning experiences;

WHEREAS, both parties believe that aside from the usual teaching internship, intensive field study is necessary to adequately prepare the teacher interns for their functions and responsibilities;

WHEREAS, both parties have a clear understanding of the definitions of the following terms:

a. **Foreign Host Establishments or Organization (FHEs/Os)** – refer to training venues for student interns duly recognized and registered entities in the country of destination.

b. **Higher Education Institutions (HEIs)** – refer to education institutions, private or public undertaking operations of higher education program/s with an organized group of students pursuing defined studies in higher education, receiving instructions from teachers, usually located in a building or group of building in a particular site specifically intended for educational purposes.

c. **Internship/On-the-Job Training (OJT)/Practicum** – refers to the application of classroom learning to actual work such as but not limited to commercial and industrial services, government, or non-government agencies on the field laboratory.

d. **Foreign Service Post (FSP)** – refers to all Philippine embassies, missions, consulates general, and other foreign service establishments maintained by the Department of Foreign Affairs pursuant to RA 7157, otherwise known as the "Philippine Foreign Service Act of 1991".

e. **Student Interns** – refer to Filipino student enrolled in CHED recognized programs or courses offered by HEIs and qualified to undergo SIAP as required by their program/courses.

f. **Inter-Agency Council Against Trafficking (IACAT)** – refers to a body mandated by law to coordinate and monitor the implementation of Republic Act 9208 or the Anti-Trafficking in Persons Act of 2003 with the Department of Justice as the lead agency.

NOW THEREFORE, for in consideration of the foregoing premises, the parties hereby bind themselves to undertake this Agreement under the following terms and conditions:

1. The **UNIVERSITY** will:

a. acknowledge its duty to ensure that students participating in the SIAP are adequately prepared, supervised, and supported.

b. develop, in collaboration with duly selected FHEs/Os, an Internship Plan outlining student outcomes, knowledge, skills, and competencies for each assignment area, along with a schedule of activities. The internship shall be part of the Internship Contract signed by student interns, the HEI, and FHEs/Os;

c. shall designate a full-time SIAP Coordinator responsible for all aspects of student internship programs, including program implementation, monitoring, and evaluation. Duties include:
   i. Monitoring and direct contact with student interns during international internships;
   ii. Direct communication with the DFA through the relevant FSP in emergencies;
   iii. Notification and regular updates to CHED, coordinating closely with FHEs/Os in emergency situations;

d. prepare a Contingency Plan in coordination with partner FHEs/OS, including timely coordination with the FSP in the host country during emergencies, to be submitted to CHED along with application documents;

e. conduct an initial visit/inspection of partner FHEs/OS and representative offices to ensure the safety of student interns and document and submit an inspection report, including accreditation and qualifications, to DFA Consular Affairs through CHED regarding partner FHEs/Os;

f. prepare policies and procedures for handling international internships, including management responses to health emergencies, natural disasters, and similar events;

g. pre-qualify student interns according to requirements from receiving FHEs/Os and facilitate document processing on behalf of student interns;

h. conduct an intensive pre-departure orientation covering risks, health situations, and destination protocols for qualified student interns and provide disaster risk management training for student interns;

i. ensure the registration of student interns at PSF in coordination with FHEs/Os;

j. require students interns to obtain appropriate insurance coverage, including but not limited to **health, accident, and liability insurance**, before departure, and shall ensure that students are properly briefed on safety protocols, legal obligations, and host country regulations prior to their departure;

k. provide immediate support to student interns in case of insurance claim delays;

l. monitor and evaluate the performance and welfare of student interns, addressing complaints and grievances by coordinating with FHEs/Os, CHED, FSP, and other government authorities;

m. collate monthly experiential journals;

n. submit, in coordination with FHEs/Os, the registration report to CHED-OSDS through the respective CHED Regional Office (CHEDROs) within fifteen (15) days upon intern registration at the FSP;

o. conduct debriefing and post-evaluation of student interns upon their return;

p. impose disciplinary sanctions on student interns found guilty of violating CMO No. 10 Series of 2023 provisions;

q. submit the CHEDRO incidental report in case of a critical incident during international internships;

r. report irregularities, violations, or incidents as per Department of Labor and Employment (DOLE) guidelines, RA 7610, and RA 11930 to IACAT through CHED; and

s. submit the required Annual Report per Academic Year (AY) on SIAP implementation to the Office of Student Development and Services (OSDS) through CHEDROs in hard and electronic files within fifteen (15) days after the AY, including the following information;

t. issue a final grade to the student intern upon the completion of the requirements within the prescribed period in accordance with its regulations on grading system and performance assessment of the FHEs/Os.

2. The **FOREIGN TRAINING ESTABLISHMENT OR FHE** will:

a. assume primary responsibility for the day-to-day supervision and workplace integration of the student interns during the internship period. The FHE shall provide a safe and conducive learning environment and shall ensure compliance with applicable labor and internship laws of the host country.

b. develop, in collaboration with the UNIVERSITY an Internship Plan for the student intern specifying among others the goals and objectives, student outcomes, knowledge, skills, and competencies that the student intern should acquire in each area of assignment and schedule of activities. The internship plan shall be part of the Internship Contract to be signed by the student interns, the HEI, and FHEs/Os;

c. present and register the student intern at the nearest FSP within a week upon arrival in the Host Country. Registration of student interns must include the following information;
   i. Name, Age, Contact Numbers, and Passport details;
   ii. Name and Address of School in the Philippines and the program enrolled in;
   iii. Date of arrival, tentative date of departure, and duration of internship in the host country;
   iv. Residential Address/Dormitory and Host Establishment with contact numbers;
   v. Name and Contact Numbers of the competent coordinator/tutor of FHEs/Os and copy of the OJT plan; and
   vi. A copy of the CHED Endorsement;

d. provide Supervised Applied Learning Experience for student interns in accordance with the agreed Internship Plan, Internship Contract, and schedule of activities;

e. assign a competent Intern Supervisor/Mentor responsible for the implementation of all phases of the Internship Plan;

f. provide free relevant instruction, exposure, and training to the student intern, consistent with its policies, rules and regulations;

g. treat the student intern in a professional manner;

h. ensure that the student intern, in the course of internship shall not be exposed to any form of harassment/unethical practice or tasks and work assignments that are unreasonably risky, dangerous or unrelated to the purposes of the Internship Program;

i. assist students for departure upon completion of the training or premature termination;

j. issue Certificate of Completion of Internship to the student interns after completion of the program;

k. submit a written report within five (5) working days to the FSP after the completion of the authorized period of stay of the student interns, for information and/or notation. The report should contain among others the following:
    i. Name of student interns who completed the SIAP;
    ii. Name of student interns who have not completed the SIAP and reason/s for non-completion, if any; and
    iii. Departure details

3. The **STUDENT INTERNS** will:

a. be responsible for adhering to the policies and regulations of both the University and the FHE, as well as the laws of the host country. Any violation of such policies or laws shall be the responsibility of the student intern, subject to the disciplinary measures of the University and the FHE;

b. sign and comply with provision of the internship contract, including the rules and regulations of the CHED, the University, and FHE/O;

c. undergo the required orientation internship program and/or disaster risk training management conducted by the HEI and FHE/O;

d. maintain confidentiality, when and where appropriate during and after the internship period of all the data, business or trade secrets where such information is not within the public domain and is indicated and is understood confidential;

e. adhere to the existing rules and regulations of the FHE including the proper use of tools, instruments, machines, and equipment;

f. keep a weekly journal of internship/OT/practicum experiences describing his/her internship activities, problem/s encountered, and reflections on the internship experience to be submitted on a weekly basis to the faculty member or any authorized Coordinator;

g. complete the agreed duration of his/her internship;

h. submit to the UNIVERSITY the terminal report and other school requirements upon completion of the internship; and

i. report to CHED through the concerned CHEDROs any complaints or grievance, copy furnished their UNIVERSITY.

4. GENERAL PROVISIONS

a. The duration of the program shall be equivalent to **(360 hours).**

b. The **STUDENT INTERN** will bear the costs associated with their airfare, accommodation, insurance, and any other fees pertinent to the processing of their travel documents.

c. The internship shall be held within the premises of the **FHE** and the **STUDENT INTERN** is required to remain within the premises for a maximum of eight (8) hours between 8:00 am to 5:00 pm, Mondays to Fridays only.

d. The **FHE** and the **UNIVERSITY** shall jointly develop an Internship Plan for the **STUDENT INTERN** specifying objectives, knowledge, and competencies that the student intern should acquire in each learning area, assignment, and/or activity covered by the Internship Plan;

e. The **FHE** is not obliged to employ the **STUDENT INTERN** upon completion of the internship.

f. The **FHE**, however, upon consultation with the **UNIVERSITY**, may invite qualified students to submit themselves to examinations, interviews, and file pertinent documents in support of their application;

g. There is no employer-employee relationship between the **FHE** and the **STUDENT-INTERN**. As **STUDENT INTERN**, he/she shall not be entitled to the compensation/benefits accorded to an employee. However, the **FHE** may grant the student intern a training allowance, if possible, in accordance with the **FHE**'s existing rules and regulations;

h. Since the **STUDENT INTERNS** are not employees of the **FHE**, they are not to be subjected to mandatory overtime (OT) nor be required to work during holidays.

i. The **BOTH PARTIES** shall claim co-ownership for whatever output/result/technologies generated from the internship that will merit intellectual property application, publications, or use, subject to the policies of the University relating to copyright and intellectual property rights; and

j. The **BOTH PARTIES** shall not divulge any information that it may have access to, and any such information will only be used for academic purposes.

k. The **STUDENT INTERN** must obtain insurance that covers benefits for death, accident, dismemberment, emergency medical, and travel assistance.

5. ONLINE INTERNSHIP

The Online Internship Program of the University is established in order to comply with CHED COVID Advisory No. 7 and Joint Memorandum Circular Order No. 2021-001. The provisions of this Agreement, when applicable, and the following shall apply:

a. The **STUDENT INTERNS** are allowed to perform **ONLINE TRAINING (WEB-BASED)** or be subjected to **WORK-FROM-HOME** arrangements as delegated by the **FHE** and pursuant to the policies of the **University**. The same shall be considered creditable internship hours for the purpose of this Agreement*;*

b. The **STUDENT INTERNS** are expected to perform office-related tasks such as, but not limited to, research, production of written reports, attendance in meetings (i.e. Zoom, Google Meet, Microsoft Teams, and other similar video conferencing services), as may be applicable; and

c. The **STUDENT INTERNS** shall perform tasks or responsibilities within the time as specified in the Agreement established by the **University** and the **FHE.**

6. TERMINATION, ENTIRETY OF THE AGREEMENT, PERIOD AND GOVERNING LAW

1. **BOTH PARTIES** shall have the right to pre-terminate the training contemplated by this Agreement by serving a written notice to the other party at least thirty (30) days prior to the intended date of termination and based on the following grounds:
   a. The student intern substantially violates the rules and regulations of **FHE**, or in cases of serious misconduct of the student intern;
   b. The **FHE** is proven to fail in providing the safety of the student intern and quality of training contemplated by this Agreement; and
   c. There is any material violation of the foregoing covenants that will warrant the cancellation of this Agreement.

   PROVIDED that the terminating party shall formally inform the Program Coordinator or Faculty Adviser of the grievance before any decision to terminate is made and finalized. The Program Coordinator or Faculty Adviser shall intervene in order to rectify the situation in the interest of all parties concerned.

2. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof. It excludes and supersedes everything else which has occurred between the parties whether written or oral, including all other communication with respect to the subject matter hereof. Any amendment hereto shall be mutually agreed upon in writing by the Parties.

3. This Agreement shall take effect beginning the **1st semester of SY 2025-2026 and shall continue to be in force for a period of three (3) years unless earlier terminated for just cause**, by either Party after thirty (30) days prior written notice to the other Party.
4. The three-year period shall be applicable to cover other prospective student interns who may likewise be required to undergo an internship with the **FHE**during the effectivity of this Agreement.
5. Any renewal of this Agreement shall be through the mutual written consent by both parties.
6. This Agreement shall be governed by and construed in accordance with the laws of the Republic of the Philippines.

IN WITNESS WHEREOF, the parties hereby affix their signatures this _____ day of _____, 20___ at _____, Philippines.

POLYTECHNIC UNIVERSITY OF THE PHILIPPINES	**NAME OF COMPANY**
By:	By:
_____	_____
DR. EMANUEL C. DE GUZMAN	**MX.**
Vice President for Academic Affairs	*Designation*

SIGNED IN THE PRESENCE OF:

_____	_____
DR.	**MX.**
Dean, Name of College	*Position*

DESIGNATED CONTACT PERSONS:

For the **POLYTECHNIC UNIVERSITY OF THE PHILIPPINES (PUP):**

Name: [Insert Name of Program Coordinator / Focal Person]

Position: [e.g., SIAP Coordinator / Faculty-in-Charge]

Office: Office of the Vice President for Academic Affairs

Email: [Insert Email Address]

Contact Number: [Insert Mobile/Landline Number]

For the [**NAME OF PARTNER INSTITUTION OR COMPANY]:**

Name: [Insert Name of Contact Person]

Position: [e.g., Training Manager / HR Officer / Internship Supervisor]

Department/Office: [Insert Department Name, if applicable]

Email: [Insert Email Address]

Contact Number: [Insert Mobile/Landline Number]

ACKNOWLEDGMENT

Republic of the Philippines)
City of _____) S.S.

BEFORE ME, a Notary Public, for and in the City of _____, this _____day of _____, 20___, personally appeared:

	Valid Proof of Identity	Issued at/on
DR. EMANUEL C. DE GUZMAN	_____	_____
MX. _____	_____	_____

known to me to be the same persons who executed this instrument and acknowledged the same to me as their free and voluntary act and deed, and of the entities they respectively represent.

This document consists of eight (8) pages including the page where this Acknowledgment is written, and the parties signed at the left margin of each and every page hereof.

WITNESS MY HAND AND SEAL on the place and date first above written.

Notary Public

Doc. No. _____;
Page No. _____;
Book No. _____;
Series of _____.